

TENTATIVE RULING(S) FOR July 14, 2026

Department S37 – Judge Winston Keh

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You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2427996

Cal26 Property v. Davis

Before the Court are the following discovery motions: (1) Plaintiff's motion to compel responses to form interrogatories from Davis; and (2) Plaintiff's motion to compel responses to request to inspect writings from JDM. The respective Defendants oppose. Plaintiff replies.

Analysis

The discovery at issue was served on November 18, 2025. (Gentino Decls. ¶ 1.) Plaintiff provided five extensions, the last one being to March 8, 2026. To date, no responses have been served. (*Id.* ¶ 2.)

The opposition basically is of defense counsel requesting that sanctions not be imposed against him and arguing that the amount sought is not reasonable. Defendants assert that the notice of motion only seeks sanctions against defendant and does not seek sanctions against defense counsel. Defense counsel

states that he is having client communication and other problems with Defendants. He has filed motions to be relieved as counsel, which are set for July 14, 2026. (Murphy Decls. ¶ 1.)

In the opposition to the request to inspect motion, defense counsel states that it is his understanding that JDM is under suspension with the Franchise Tax Board. (Murphy Inspect Decl. ¶ 4.)

Defendants also argue that Plaintiff's counsel's hourly rate of \$850 is not demonstrated to be reasonable for this county. They also contend that the amount sought is not reasonable.

Plaintiff replies, discussing that the Secretary of State confirms that JDM is under suspension. (Gentino Reply Decl. Exh. 1.) As such, JDM cannot defend the action so the opposition should not be considered.

Plaintiff also raises issue that under Revenue and Taxation Code § 19719, anyone who purports to exercise the rights and powers of a suspended corporation, including a lawyer who appears on its behalf, is guilty of a misdemeanor. It also asserts that a lawyer who knowingly represents a suspended corporation and conceals the fact from the court may be subject to sanctions or other adverse consequences.

With JDM suspended, its opposition cannot be considered. As for issues that Plaintiff raises on reply about defense counsel and restrictions on a lawyer representing a suspended corporation, defense counsel did disclose JDM's suspended status in his declaration.

As for the form interrogatories motion, it is granted. At this point, the inspection motion is unopposed and is also granted. But this does not mean the Court cannot evaluate the sanctions requested, even for an unopposed motion.

Here, Plaintiff seeks sanctions of \$3,048.41 in each motion against the respective Defendants, which is comprised of: 1.5 hours to research, draft, and file the motion; an anticipated 2 hours to review opposition, draft reply, review tentative ruling, and attend the hearing at \$850/hour, plus filing fee of \$73.41. Plaintiff's counsel claims 46 years of experience and asserts a reasonable hourly rate for an attorney in Los Angeles County with more than 20 years of experience is \$1,057. (Gentino Decls. ¶¶ 3.)

But this is not Los Angeles County and the amount of time spent on these types of motions by a lawyer with over 46 years of experience, 3.5 hours in total, is not reasonable, especially one charging \$850/hour. If counsel is going to get that kind of hourly rate, then the amount of time should be reduced. Because the motion arguments are similar and these are legally straightforward motions, with the hearings

on the same date and time, the Court grants 3 hours total for both motions and split it between the two motions, plus filings fees. Therefore, the Court awards sanctions of \$1,348.41 against Defendant Davis (\$1,275 in attorney fees, plus \$73.41 filing fee); and sanctions of \$1,348.41 awarded against Defendant JDM (\$1,275 in attorney fees, plus \$73.41 filing fee).

Defense counsel is correct that because sanctions are not noticed as being sought against him, they should not be awarded against him.

RULING

For all the reasons stated above, the Court rules as follows:

Given responses have not been served, the Court **GRANTS** Plaintiff's motion to compel responses to form interrogatories from Jeanette Davis and order code compliant responses be provided within 10 days. The Court awards sanctions against Davis in the amount of \$1,348.41, payable within 10 days.

The Court **GRANTS** Plaintiff's motion to compel responses to request to inspect writings from Jeanette Davis Management, which is a suspended corporation. The Court orders code compliant responses be provided within 10 days, although JDM must obtain a revivor of its corporate status before it can defend itself in the action. The Court awards sanctions against Jeanette Davis Management in the amount of \$1,348.41, payable within 10 days.

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CIVSB2514895

Serna v. Ford

On February 23, 2026, Plaintiffs filed a Memorandum of Costs, seeking costs of \$2,817.33. Before the Court is Ford's motion to tax costs of \$2,071.33 in the following categories: (1) Court reporter fees of \$1,847.19; and (2) "Other" of \$224.14. Plaintiff opposes. GM replies.

ANALYSIS

Court Reporter Fees. Ford seeks to tax \$1,847.19 related to court reporter fees. It argues the Memorandum of Costs states it was for "US Legal Support on 9/29/25," but no exhibit is attached to any of Plaintiffs' served documents showing an invoice or receipt for the court reporter. It argues the amount is unreasonable or unnecessary because it appears to be related to court reporter costs for Plaintiffs' deposition taken by Defendant. It argues that it paid for its own court reporter. It asserts that it is unclear why this is included under its own item and not under "Deposition costs."

Plaintiffs argue that their counsel paid for deposition transcripts for both Plaintiffs. They assert that Ford cannot object to the amount given Ford chose the court reporter company and paid a similar amount. It argues that under Code of Civil Procedure section 1033.5, subdivision (a)(3)(A), costs are allowed for “transcribing necessary depositions including ... one copy of depositions taken by the party against whom costs are allowed.” They also argue that these costs are permitted under the broader framework of “expenses” permitted under Song-Beverly. They attach an invoice in support. (Swanson Decl. Exh. A.)

On reply, Ford argues the amount sought for Plaintiffs’ deposition transcripts should be struck. It asserts that the invoice attached to the Hearing Reporters section of Plaintiffs’ Exhibit 1 only lists Melissa Anastasia Serna, rather than both Plaintiffs.

It is unclear what Ford is talking about because the invoice shows certified copies of transcripts for both Plaintiffs were sought.

Job Location	Ordered By	Reference Info.
U.S. Legal Support providing link - RemoteDepo	Debra Reed, Esquire Knight Law Group LLP 10250 Constellation Boulevard # 2500 Los Angeles CA 90067	Client Matter No: Claim No: Insured: D/O/L: Adjuster:
1 CERTIFIED COPY OF TRANSCRIPT OF: Melissa Anastasia Serna		
1 CERTIFIED COPY OF TRANSCRIPT OF: Gustavo Alex Espinoza		
Total Due		\$1,847.19
AFTER 11/17/2025 PAY		\$2,124.27
(-) Payments/Credits		\$0.00
(+) Finance Charges/Late Fees		\$0.00
(=) New Balance		\$1,847.19
Tax ID : 76-0523238 Nevada Firm Registration # 067F		
Invoice not paid by due date is subject to interest of 1.5% per month. We will make reasonable efforts to allocate payments properly. U.S. Legal Support may recover any fees and costs it incurs in collecting any unpaid amounts. Any rights regarding allocations, refunds or adjustments after 90 days from payment shall be waived by payer. Review our Terms & Conditions for additional information at our website www.uslegalsupport.com .		
Transcript summaries are produced and delivered within 48 hours of transcript delivery.		

Ford also argues that the amount on the invoice includes the list of exhibits used at the depositions. It contends that Plaintiffs had the exhibits before obtaining the depositions and only needed the transcript itself. Therefore, it argues, the deposition cost was unreasonable and unnecessary.

The Court denies the motion as to Court Reporter costs. Code of Civil Procedure section 1033.5, subdivision (a)(3)(A), provides for recovery of the cost of transcribing necessary depositions, including one copy of depositions taken by the party against whom costs are allowed. Ford’s argument about

exhibits does not render the expenses unnecessary or unreasonable. Plaintiffs are entitled to one copy of depositions taken by Ford, which include exhibits.

Other. Ford also takes issue with \$224.14 sought for “Attorney Services and Messenger Court Filings and Service.” It argues that it is unclear what attorney services cost \$224.14, and without any invoices, correspondence, or further breakdown, the fees are not demonstrated to be necessary or reasonable. It argues that Plaintiffs should have provided an exhibit in support.

Plaintiff argues that these fees are related to filing court documents, such as the complaint, case management conference statement, motion documents, notices, as well as service of courtesy copies for Plaintiff’s discovery motion.

On reply, Ford states the invoices provided are helpful. It asserts that it originally questioned whether the costs were duplicative of filing fees. It contends that Plaintiffs’ further documentation is not enough to demonstrate why this category is separate from filing fees and what makes the costs not included in the court costs for the original filing.

To the extent the fees are related to electronic filing, they are not filing fees. Instead, they are separately recoverable as “fees for electronic filing or service of documents through an electronic filing service provider,” given the Court requires electronic filing and service. (Code Civ. Proc., § 1033.5(a)(14).) This is separate from “[f]iling, motion, and jury fees” provided for under section 1033.5(a)(1), which is related to the fees the Court charges; hence the reason they are not included as part of filing fees.

Nonetheless, the Court tax costs of \$91.00 related to Plaintiffs providing “courtesy copies” because these amounts are not demonstrated to be reasonable or necessary.

RULING

For all the reasons stated above, the Court **GRANTS** in part and **DENIES** in part Defendant Ford’s motion to tax costs. Tax costs in the total amount of \$91.00, which is comprised of costs related to delivery of courtesy copies to the Court; deny the motion as to all other costs at issue.